TITLE COMMITMENT

Hollis Marlow Collegiate Commons | Raleigh, NC

Commitment No.	TC-13131313
Property	Hollis Marlow Collegiate Commons, 4820 Meadow Court, Raleigh, NC 34841
Proposed Insured	Cascadia Rock Capital
Effective Date	March 5, 2018

1. Schedule A - Commitment. Effective Date: March 5, 2018. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Cascadia Rock Capital. Amount of Insurance: $50,920,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

2. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Northvale Development Co.. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

3. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Northvale Development Co. to Cascadia Rock Capital. Provide evidence of authority of signatories. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

4. Schedule B-II - Exception. Taxes and assessments for the year 2021 and subsequent years, a lien not yet due and payable. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

5. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 46, Page 46, Official Records of the county. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

6. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 191919, as amended. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

7. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only